

TENTATIVE RULING FOR May 15, 2026

Department S22 – Judge David Driscoll

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

You may appear in person at the hearing although remote appearance by CourtCall is preferred during the Pandemic. (See www.sb-court.org/general-information/remote-access).

If you do not have Internet access or if you experience difficulty with the posted tentative ruling, you may obtain the tentative ruling by calling the department (S-22) at (909) 521-3529 or the Administrative Assistant (909) 708-8756, who prepared the ruling.

If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2316424

KINCAID v. PIETTE, et al.

TENTATIVE RULING

On July 17, 2023, plaintiff Alexandria Nicole Kincaid (Plaintiff) initiated the instant action against defendants Raoul Vincent Piette (Defendant) and Does 1-100. The operative Complaint alleges one cause of action for negligence. Plaintiff alleges on July 29, 2021, Defendant was operating his vehicle in a reckless and negligent fashion, causing severe personal injuries to Plaintiff.

On September 9, 2025, an Amended Answer was filed on behalf of Raoul Vincent Piette. The Amended Answer interposed the affirmative defense (Twelfth) of RELEASE executed by the Plaintiff as a bar to the action, which is incorporated by reference and attached as Exhibit "A".

Plaintiff thereafter noticed the deposition of the insurance claims adjuster, Ronald McTier, who was purportedly involved in the procurement of the release of all claims against Defendant Raoul Vincent Piette, as well as against Barbara Piette and California Automobile Insurance Company. Specifically, Plaintiff served a Deposition Subpoena for Personal Appearance and Production of Documents regarding the Defendant's insurance claim.

Defendant filed the present Motion for Protective Order Preventing the Deposition of Mercury Insurance Company's Adjuster, Roland McTier (Motion). The motion also seeks to quash the subpoena for records and documents because Mr. McTier is not the "custodian of records".

Section 2017.020, subdivision (a), of the Code of Civil Procedure provides, in pertinent part, as follows: "[t]he court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. The court may make this determination pursuant to a motion for protective order by a party or other affected person." (Code Civ. Proc., § 2017.020, subd. (a) (emphasis added).)

The issuance and formulation of protective orders are largely discretionary and rulings on motions for protective orders will not be disturbed absent an abuse of discretion. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 316-317 (*Nativi*); *Raymond Handling Concepts Corp. v. Super. Ct.* (1995) 39 Cal.App.4th 584, 588.) The trial court is in the best position to weigh fairly the competing needs and interests of parties affected by discovery. (*Nativi, supra*, 223 Cal.App.4th at p. 317.) The appropriate test for abuse of discretion is whether the trial court exceeded the bounds of reason. (*People ex rel. Harris v. Sarpas* (2014) 225 Cal.App.4th 1539, 1552 (*Harris*).) Where there is a legal basis for the trial court's ruling and it is supported by evidence, a reviewing court will not substitute its opinion. (*Id.*, at p. 1552.)

A monetary sanction shall be imposed against any party, person or attorney who unsuccessfully makes or opposes a motion for protective order, unless it finds the one subject to the sanction acted with substantial justification or the circumstances make the imposition of the sanction unjust. (Code of Civ. Proc., §2034.250, subd. (d).)

Analysis

Defendant seeks a protective order pursuant to sections 2025.420, 1987.1, 1987.2, 2020.410 and 2017.020 of the Code of Civil Procedure as to the Deposition Subpoena for Personal Appearance and Production of Documents and Things and a Notice of Deposition for Mercury Adjuster Roland McTier (McTier) served on November 19, 2025. Defendant contends the subject discovery request disregards the Civil Discovery Act, the Insurance Information and Privacy Protection Act (Insurance Code section 791.01 et seq.), and the privileges afforded under attorney-client communications and attorney work product doctrine. Citing cases such as *American Mutual v. Superior Court* (1974) 38 Cal.App.3d 579, 592, Defendant argues an insurer can assert attorney-client privilege to prevent disclosure of its files. Further, Defendant contends the Insurance Information and Privacy Protection Act (Ins. Code section 791.01 et seq.) and section 2017.210 of the Code of Civil Procedure explicitly limit discovery of insurance-related information to the existence of coverage and its limits, not claims handling, underwriting files, or investigative reports. Defendant requests a protective order to prevent disclosure of privileged information.

Defendant also requests monetary sanctions against Plaintiff for misuse of the discovery process under section 2023.010(a). Alternatively, Defendant requests the court quash the subpoena as it

was not properly served to the “custodian of records” or some other person qualified to authenticate Mercury Insurance Group’s records.

Plaintiff argues Defendant affirmatively pleads settlement and relies on a Release that McTier was an active participant in procuring and as such, he is a percipient witness. Plaintiff argues section 2017.210 does not apply here as Plaintiff is seeking settlement-formation facts and the statute does not shield settlement communications used to procure a release *now challenged for fraud or mistake*. Plaintiff contends, *inter alia*, that Mercury Insurance withheld and failed to disclose the existence of known medical liens at the time of settlement execution, which adversely impacted the value of the settlement. Communications with third parties regarding the existence and amount of medical liens is not a privileged communication. Plaintiff further contends Insurance Code section 791.13(h) explicitly permits disclosure in response to a subpoena or court order.

Defendant replies, renewing his contention that the information sought from Plaintiff’s subpoena is privileged and arguing Plaintiff fails to address the argument advanced in his Motion that the subpoena for production of documents must be quashed because it was not served on the proper party. Defendant further renews his position that Code of Civil Procedure section 2020.410(c) requires that a subpoena for production of business records be directed to the “custodian of records” or some other person qualified to authenticate the records.

Plaintiff files a belated objection pointing out that CCP §2020.410(c) only applies to deposition subpoenas solely seeking production of documents without the appearance of a witness, whereas Section 2020.020 governs attendance of in-person witnesses with document production.

In any event, the court agrees that the deposition notice with document production and the subpoena contain some categories which are overbroad and require restriction, and likewise the scope of the deposition must be restricted. The court intends to grant Defendant’s motion in part and permit limited deposition testimony with document production as follows.

Questioning and scope of McTier’s testimony shall be limited to representations at or about the time of execution of the release made by McTier, or others to his knowledge employed by Mercury, to plaintiff or plaintiff’s representatives regarding case value, value of injuries, the amount of medical billings or specials, the existence or non-existence of medical liens, the permanency of the release, and the legal effect of the release. The scope of questioning shall also include McTier’s involvement in discussions with or among Mercury employees regarding the existence of medical liens at or about the time of and after the execution of the release.

Documents to be produced pursuant to notice (or by subpoena) shall be limited in similar fashion to the scope of subject matter permitted for the deposition testimony/questioning of McTier. Such production is limited to documents in the Mercury Claim files generated at or about the time the release was executed referencing the release, terms of the release, notice or existence of medical liens, and potential possession of outstanding medical lien billings. Defendant’s counsel shall produce a privilege log identifying withheld documents. Presently, as for the documents requested to be produced, the subject documents are ostensibly documents held by Mercury Insurance Group’s custodian of records and not by McTier personally. The Court’s decision is

provided as guidance should the parties, absent stipulation, be required to obtain the documents by way of subpoena.

The Defendant's attendant request for sanctions is denied. The defendant is not the prevailing or successful party as the motion was only partially granted and the court finds the parties acted with substantial justification rendering imposition of sanctions unjust.